

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK-----X
JASON BAERGA

Plaintiff,

SUMMONS

-against-

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MAYKO
MATOS, 6TH PCT., SHIELD 13660,
INDIVIDUALLY, AND AS A POLICE OFFICER,
POLICE OFFICER CHRISTOPHER CHAMPION,
6TH PCT., SHIELD #05415, INDIVIDUALLY, AND AS
A POLICE OFFICER, SGT. THOMAS
LEWANDOWSKI, 6TH PCT. TAX ID #950747,
INDIVIDUALLY, AND AS A POLICE OFFICER,
POLICE OFFICER JUSTIN CRISTIANO, 6TH PCT.,
TAX ID # 9651891, INDIVIDUALLY AND AS A POLICE
OFFICER, POLICE OFFICER ANGEL GONZALEZ, TAX
ID# 965143, POLICE OFFICER DENNNIS ALOIO,
6TH PCT., TAX ID# 964875, INDIVIDUALLY AND
AS A POLICE OFFICER, POLICE OFFICER LEROY
BEDFORD, 6TH PCT., TAX ID #92345, INDIVIDUALLY
AND AS A POLICE OFFICER
AND POLICE OFFICER JOHN/JANE "DOE",
#1-#5, IDENTITIES UNKNOWN,

Index No.:

Date Purchased:

Plaintiff designates New York
County as the place of trial.
The basis of the venue is place
where the cause of action arose.

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of
appearance, on the Plaintiff's Attorney with twenty (20) days after the service of this summons,
exclusive of the day of service, (30) days after the service is complete, if the summons is not
personally delivered to you within the State of New York; and in case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
This 28th day of June, 2022

A handwritten signature in black ink, appearing to read "Jeffrey L. Emdin". The signature is fluid and cursive, with a large initial "J" and "E".

Jeffrey L. Emdin, Esq.,
Attorney for Plaintiff
330 West 38th Street Suite 302
New York, New York 10018
(212) 265-1350

Defendants address:

City of New York
c/o Office of the Corporation Counsel,
City of New York
100 Church Street
New York, New York 10007

The New York City Police Department
1 Police Plaza
New York, New York 10038

P.O. Mayko Matos, shield # 13660
P.O. Christopher Champion #05415
Sgt.. Thomas Lewandowski Tax # 950747
P.O. Justin Cristiano, Tax # 951891
P.O. Angel Gonzalez, Tax # 965143
P.O. Dennis Aloio, Tax # 964875
P.O. Leroy Bedford, Tx # 92345
c/o 6th Pct.
233 W 10th Street
New York, NY 10014

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
JASON BAERGA

Plaintiff,

VERIFIED COMPLAINT

-against-

Index No.:

Date Purchased:

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER MAYKO
MATOS, 6TH PCT., SHIELD 13660,
INDIVIDUALLY, AND AS A POLICE OFFICER,
POLICE OFFICER CHRISTOPHER CHAMPION,
6TH PCT., SHIELD #05415, INDIVIDUALLY, AND AS
A POLICE OFFICER, SGT. THOMAS
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OFFICER, POLICE OFFICER ANGEL GONZALEZ, TAX
ID# 965143, POLICE OFFICER DENNNIS ALOIO,
6TH PCT., TAX ID# 964875, INDIVIDUALLY AND
AS A POLICE OFFICER, POLICE OFFICER LEROY
BEDFORD, 6TH PCT., TAX ID #92345, INDIVIDUALLY
AND AS A POLICE OFFICER
AND POLICE OFFICER JOHN/JANE "DOE",
#1-#5, IDENTITIES UNKNOWN,

Defendants.
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The plaintiff, Jason Baerga, by his attorney, The Law Office of Jeffrey L. Emdin, complaining of the defendants, respectfully shows to this court and alleges:

1. Upon information and belief, that at all times hereinafter mentioned, the defendant, The City of New York, hereinafter referred to as "City", was, and still is, a municipal corporation duly organized and existing under, and by virtue of, the laws of the State of New York.

2. Upon information and belief, at all times hereinafter mentioned, the defendant, the City of New York, hereinafter referred to as the "City", its agents, servants and/or employees operated, maintained and controlled the New York City Police Department, hereinafter referred to as "NYPD", including all the police officers therein.

3. Upon information and belief, at all times hereinafter mentioned and on the 5th day

of July, 2021, Police Officer Mayko Matos, hereinafter referred to as “Matos” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 6th pct., and at all relevant times set forth below acted in the capacity of a police officer. Upon information and belief, Matos’ shield number is 13660.

4. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, at approximately 1:00 a.m., Matos was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or employee, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

5. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2021, Police Officer Christopher Champion, hereinafter referred to as “Champion” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 6th Pct, and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief Champion’s shield number is 05415.

6. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, at approximately 1:00 a.m. Champion was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

7. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2021, at approximately 1:00 a.m., Sgt. Thomas Lewandowski, hereinafter referred to as “Lewandowski” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the 6th pct, and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief, Lewandowski’s tax id number is 950747.

8. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, Lewandowski was acting within the scope of his employment as a police officer and under the direction of the “City” as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

9. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2021, at approximately 1:00 a.m., Police Officer Justin Cristiano, hereinafter referred to as “Cristiano” was employed as a Police Officer by the “City” and/or “NYPD” and assigned to the

6th Pct, and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief Cristiano's tax id number is 951891.

10. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, at approximately 1:00 a.m. Cristiano was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

11. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2021, at approximately 1:00 a.m., Police Officer Angel Gonzalez, hereinafter referred to as "Gonzalez" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 6th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief Gonzalez' tax id number is 965143.

12. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, at approximately 1:00 a.m. Gonzalez was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

13. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2021, at approximately 1:00 a.m., Police Officer Dennis Aloio, hereinafter referred to as "Aloio" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 6th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief Aloio's tax id number is 964875.

14. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, at approximately 1:00 a.m. Aloio was acting within the scope of his employment as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

15. Upon information and belief, at all times hereinafter mentioned, and on the 5th day of July, 2021, at approximately 1:00 a.m., Police Officer Leroy Bedford, hereinafter referred to as "Bedford" was employed as a Police Officer by the "City" and/or "NYPD" and assigned to the 6th Pct., and at all relevant times set forth below, acted in the capacity of a police officer. Upon information and belief Bedford's tax id number is 92345.

16. Upon information and belief, at all times hereinafter mentioned and on the 5th day of July, 2021, at approximately 1:00 a.m. Beford was acting within the scope of his employment

as a police officer and under the direction of the "City" as their agent, servant and/or servant, and required to follow the Patrol Guidelines of the New York City Police Department, then in effect.

17. Upon information and belief, Police Officers John/Jane "Does" #1-#5, hereinafter collectively referred to as the "Does", were each employed as New York City Police Officers on July 5, 2021, assigned to the 6th Pct., and at all times acted within the scope of his/her employment with the "City" and/or "NYPD". They are each sued in their individual capacity as their true identities are currently unknown.

18. Collectively, Matos, Champion, Lewandowski, Cristiano, Gonzalez, Aloio, Bedford and the Does shall be referred to as "the officers".

19. On the 5th day of July 2021, plaintiff, Jason Baerga, hereinafter referred to as "Baerga" and/or "plaintiff", was a resident of the State of New York, County of New York. He is currently a resident of Queens County, New York.

20. That on July 5, 2021 at approximately 1:00 a.m., the plaintiff was lawfully in the vicinity of Washington Square Park South in New York County, hereinafter referred to as "the location" or the "park".

21. At that time, place and location NYPD police, including the defendants and other civilians were also present.

22. Upon information and belief, at that time and place the "officers" were on duty as New York City Police Officers and present at the location.

23. The plaintiff was not engaged in any criminal activity at any time at the aforementioned date, time and location.

24. Upon information and belief, at the aforementioned time and place, one or more of the officers were present and involved in an unrelated police activity involving removing person or persons from the park.

25. Upon information and belief, many of the individuals present at the location were objecting to the excessive use of force by the NYPD police officers, and the plaintiff attempted to use his flashlight to obtain a badge number of a police officer.

26. Officer Matos twice used his baton, attempting to knock the flashlight from the plaintiff's hand, and resulting in the plaintiff being struck.

27. Upon information and belief, numerous officers surged through the barricades, chasing many of the civilians in the area, causing the plaintiff to attempt to run as well.

28. The plaintiff was grabbed and thrown to the ground and jumped on by several police officers. The officers repeatedly struck the plaintiff with fists, feet and batons, in the head, body, and limbs causing injury. Officers placed their knees/bodies on top of the plaintiff pinning him to the ground and stomping on his hand.

29. Not one officer present intervened to stop the use of excessive and unnecessary force and illegal arrest.

30. The plaintiff was arrested and placed in extremely tight handcuffs causing the plaintiff terrible pain. The defendant(s) lifted the plaintiff off the ground by his handcuffs and brought him inside the park.

31. The plaintiff was subjected to a search inside the park before being brought to a van for transport. The defendants ignored the plaintiff's obvious injury and request for medical attention. Instead, he was advised to not to complain or request medical attention as it would delay his release.

32. The defendants transported the plaintiff to the 6th pct. and once there he was handcuffed to a bench for approximately seven (7) hours while he was visibly bleeding.

33. The plaintiff was eventually transported (still in handcuffs) to Central Booking where he continued to be held against his will until his arraignment at approximately 4:00 p.m..

34. The plaintiff was falsely charged with having committed the crimes of Penal Law 205.30, 195.05 and 240.20, resisting arrest, obstruction of governmental administration and disorderly conduct.

35. Matos signed the Criminal Court Complaint as the arresting officer, which was used to prosecute the plaintiff.

36. Upon information and belief, Champion falsely accused the plaintiff of striking his helmet with an open palm.

37. Upon information and belief, Matos falsely accused the plaintiff of resisting arrest and other charges.

38. Upon information and belief Lewandowski was the supervisor in charge at the location and approved the plaintiff's arrest and charges.

39. Upon information and belief the defendants provided the plaintiff's name, address and charges to news outlets, including the New York Post which published an article on July 5, 2021 containing said information.

40. Due to the false and malicious prosecution of the plaintiff, he was required to attend multiple court appearances.

41. All criminal charges were dismissed against the plaintiff on February 1, 2022.

42. Upon information and belief, before this incident, Matos was the subject of at least seven separate incidents involving police misconduct including allegations of abuse, providing false statements, failing to prepare proper paperwork, illegal search and seizure, writing/issuing false summons, and evidence discrepancy filed with the Civilian Complaint Review Board, aka the CCRB..

43. Upon information and belief, at least three (3) complaints filed with the CCRB were substantiated, and the New York City Police Department substantiated four separate incidents. Matos was sued three times in his capacity as a police officer.

44. Upon information and belief, Matos erratic behavior and acts of violence were known to the "City" and "NYPD" prior to July 5, 2021.

45. Upon information and belief, Champion was the subject of at least two (2) substantiated CCRB findings prior to this incident alleging police misconduct, including but not limited to inaccurate evidence invoice and improper use of a police placard.

46. Upon information and belief, Champion's acts of misconduct were known to the "City" and "NYPD" prior to July 5, 2021.

47. Upon information and belief, Cristiano was the subject of at least two (2) substantiated CCRB findings prior to this incident alleging police misconduct, including but not limited to findings of abuse and discourtesy in one incident and a finding of abuse through force, i.e. using a police radio as a club in the other incident.

48. Upon information and belief defendant Cristiano also had substantiated charges found against him by the NYPD in two other separate incidents. The first incident findings included but were not limited to improperly using a police vehicle to stop a perpetrator, failing to accurately complete his daily activity log, providing false statements during an investigation, and making false entries in a police report detailing the use of force.

49. In a separate investigation, the NYPD substantiated a finding against Cristiano involving an improper search of a vehicle.

50. Upon information and belief Cristiano was sued at least five (5) times in his capacity as a police officer prior to the incident alleged in this complaint.

51. Upon information and belief, Cristiano's acts of misconduct were known to the "City" and "NYPD" prior to July 5, 2021.

52. Upon information and belief, Bedford was the subject of at least one (1) substantiated NYPD finding of misconduct against him prior to this incident and at least one prior CCRB complaint alleging police misconduct, including but not limited to use of force.

53. Upon information and belief Bedford has 5 lawsuits filed against him in his capacity as a NYPD police officer prior to this incident.

54. Upon information and belief, Bedford's acts of misconduct were known to the "City" and "NYPD" prior to July 5, 2021.

55. Upon information and belief, Gonzalez was the subject of at least one (1) substantiated CCRB findings prior to this incident alleging illegal entry and search of a home.

56. Upon information and belief, Gonzalez' acts of misconduct were known to the "City" and "NYPD" prior to July 5, 2021.

57. Upon information and belief the "officers" participated in the conspiracy to file said false reports, and to have the plaintiff falsely charged and prosecuted for crimes that they knew that plaintiff did not commit.

58. That at all relevant times herein, the Defendants were on duty and the defendants were all acting within the scope of their employment, and the defendants' unlawful acts were committed in furtherance of the City of New York's interests, and without legal justification or excuse

59. That notice of the plaintiff's claim and notice of intention to sue for damages, the nature of the claim and the date of, the time when, the place where and the manner in which the claim arose were timely and duly served upon the comptroller of the defendant "City".

60. That a 50(h) hearing of the plaintiff was held on June 16, 2022. That more than 30 days have elapsed since the notice of claim and intention to sue has been served upon the defendants and the said defendants have neglected or refused to make any adjustment or payment thereof.

61. That this action is commenced within one year and 90 days after the cause of action arose.

62. It is hereby alleged, pursuant to CPLR 1603, that this action is exempt from the operation of CPLR 1601 from the operation of CPLR 1601, by reason of one or more of the

exemptions provided in CPLR 1602.

AS AND FOR A FIRST CAUSE OF ACTION
FOR FALSE IMPRISONMENT AGAINST ALL DEFENDANTS

63. The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "62" with the same force and effect as if more fully and at length set forth herein.

64. That beginning on or about the 5th day of July, 2021, at or about approximately 1:00 a.m., at or near the "location" until the plaintiff's arraignment on July 5, 2021, at approximately 4:00 p.m., the defendants, their agents, servants and/or employees detained and imprisoned the plaintiff without any just cause or grounds.

65. That Baerga's imprisonment was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process, and without authority of the law and without any reasonable grounds, or cause to believe that the plaintiff was guilty of any crimes for which he was charged.

66. Baerga was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

67. That the defendants, their agents, servants and/or employees, as set forth above, intended to confine the plaintiff; the plaintiff was conscious of the confinement; he did not consent to the confinement; and the confinement was not otherwise privileged.

68. That all said conduct was committed by the defendants within the scope of their employment with the City of New York and/or the New York City Police Department.

69. That by reason of the aforesaid false imprisonment and detention, Baerga was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

70. That by reason of the aforesaid, Baerga has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A SECOND CAUSE OF ACTION
FOR FALSE ARREST AGAINST THE NAMED DEFENDANTS

71. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "70" with the same force and effect as if more fully and at length set forth herein.

72. That beginning on or about the 5th day of July, 2021, at or about approximately 1:00 a.m. at the "location", the plaintiff, was seized, handcuffed and placed under arrest by the defendants, their agents, servants and/or employees without any just cause or grounds, and held against his will under full force of arms.

73. That said arrest was caused by the defendants, their agents, servants, and/or employees, without any warrant or other legal process and without authority of the law and without any reasonable grounds, when the defendants lacked cause to believe that Baerga committed, or was about to commit a crime or was guilty of any crimes.

74. Plaintiff was wholly innocent of all criminal charges and did not contribute in any way or manner to his arrest and imprisonment by the defendants, their agents, servants and/or employees, and was forced to submit to the aforesaid arrest and imprisonment entirely against his will.

75. That the defendants, their agents servants and/or employees, as set forth above, intended to arrest Baerga; that the plaintiff was conscious of the arrest and confinement; the Plaintiff did not consent to the arrest and confinement; and the arrest was not otherwise privileged.

76. That all said conduct was committed by the defendant officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

77. That by reason of the aforesaid false arrest, the plaintiff, Baerga was subjected to great indignity, humiliation, stress and loss of freedom and the said plaintiff has been otherwise damaged.

78. That by reason of the aforesaid, Baerga has been damaged in an amount exceeding the jurisdictional limits of the lower courts.

AS AND FOR A THIRD CAUSE OF ACTION
FOR ASSAULT AND BATTERY AGAINST THE DEFENDANTS

79. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "78" with the same force and affect as if more fully and at length set forth herein.

80. On July 5, 2021 at the location Daniels was struck, seized, thrown to the ground, grabbed, held, kneed, struck, kicked, handcuffed, threatened and physically touched by the defendant, "City", and the "NYPD" its agents/servants, and/or employees, including defendant "officers" though the use of force and/or excessive force. Baerga was also searched and later handcuffed to a bench for hours by the defendants.

81. That all said contact was committed without the plaintiff's permission or consent.

82. That all said contact was unlawful and without privilege.

83. That the use of force was without justification.

84. That all contact committed by defendants through their agents, servants, and/or employees, including defendant officers, was offensive to Baerga and caused him to fear further contact and imminent harm, and caused plaintiff to sustain physical and/or emotional trauma.

85. That all said conduct was committed by the officers was within the scope of their employment with the City of New York and/or the New York City Police Department.

86. That the above acts committed by the defendants constituted an assault and/or battery of the plaintiff.

87. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A FOURTH and FIFTH CAUSES OF ACTION FOR EXCESSIVE USE
OF FORCE AND FAILURE TO INTERVENE AND MITIGATE

88. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked "1" through "87" with the same force and affect as if more fully and at length set forth herein.

89. That all the aforementioned contact committed by the officers was committed

without Baerga's permission or consent.

90. That all said contact was unlawful and without privilege.

91. That the use of force was without justification.

92. That the use of force was excessive and beyond the means necessary to control Baerga and/or effectuate his arrest, causing him injury and pain and suffering.

93. At no time did any of the officers present intervene, stop, mitigate or prevent the excessive use of force from occurring, although they were present and had the means and opportunity to do so.

94. That all contact committed by defendants through their agents, servants, and/or employees, including defendants "officers", was offensive to the plaintiff and caused him to fear further contact and imminent harm, and caused plaintiff Baerga to sustain physical and/or psychological injury.

95. That the above acts committed by the defendants constituted an assault and/or battery through the use of excessive force of Baerga.

96. That by reason of the aforesaid, plaintiff has been damaged in a sum exceeding the jurisdictional limits of lower courts.

AS AND FOR A SIXTH THROUGH TWELFTH CAUSE OF ACTION:
ALLEGING VIOLATIONS OF CONSTITUTIONAL RIGHTS
UNDER 42 U.S.C. SECTIONS 1983 AND 1988 BY THE CITY AND ONE COUNT FOR
EACH POLICE OFFICER IN HIS INDIVIDUAL CAPACITY
AND AS AGENT OF THE CITY OF NEW YORK, PLAINTIFF ALLEGES:

97. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "96" with the same force and effect as if more fully and at length set forth herein.

98. That at all times hereinbefore and hereinafter mentioned, the defendant "Matos" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

99. That at all times hereinbefore and hereinafter mentioned, the defendant Matos was

acting pursuant to orders and directives from defendant, The City of New York.

100. That at all times hereinbefore and hereinafter mentioned, the defendant "Champion" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

101. That at all times hereinbefore and hereinafter mentioned, the defendant Champion was acting pursuant to orders and directives from defendant, The City of New York.

102. That at all times hereinbefore and hereinafter mentioned, the defendant "Lewandowski" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

103. That at all times hereinbefore and hereinafter mentioned, the defendant Lewandowski was acting pursuant to orders and directives from defendant, The City of New York.

104. That at all times hereinbefore and hereinafter mentioned, the defendant "Cristiano" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

105. That at all times hereinbefore and hereinafter mentioned, the defendant Cristiano was acting pursuant to orders and directives from defendant, The City of New York.

106. That at all times hereinbefore and hereinafter mentioned, the defendant "Gonzalez" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

107. That at all times hereinbefore and hereinafter mentioned, the defendant Gonzalez was acting pursuant to orders and directives from defendant, The City of New York.

108. That at all times hereinbefore and hereinafter mentioned, the defendant "Aloio" was employed by the defendant The City of New York and/or The New York City Police

Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

109. That at all times hereinbefore and hereinafter mentioned, the defendant Aloio was acting pursuant to orders and directives from defendant, The City of New York.

110. That at all times hereinbefore and hereinafter mentioned, the defendant "Bedford" was employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

111. That at all times hereinbefore and hereinafter mentioned, the defendant Bedford was acting pursuant to orders and directives from defendant, The City of New York.

112. That during all times hereinbefore and hereinafter mentioned, the defendants Matos, Champion, Lewandowski, Cristiano, Gonzalez, Aloio and Bedford individually, and/or collectively with others acted under color and pretense of law, to wit: under color of the statutes, ordinances, regulations, customs and usages of The City of New York and/or New York City Police Department, and engaged in the illegal conduct set forth this complaint to the injury of the plaintiff, and deprived him of the rights, privileges and immunities secured to him by the First, Fourth, and Fourteenth Amendments to the Constitution of the United States and the laws of the United States, and State of New York and/or 42 U.S.C. Sections 1983 and/or 1988.

113. That at all times hereinbefore and hereinafter mentioned, the defendant "officers" were employed by the defendant The City of New York and/or The New York City Police Department and was acting under the color of his official capacity and his/their acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the City of New York.

114. That at all times hereinbefore and hereinafter mentioned, the defendant "officers" were acting pursuant to orders and directives from defendant, The City of New York.

115. Upon information and belief, the "City" knew of the improper, unconstitutional and/or illegal police practices of Matos prior to July 5, 2021 and yet continued to employ, assign and/or promote Matos without any meaningful discipline and/or punishment or retraining and placed him in a position to do the acts stated herein and where other officers would follow his lead

to the detriment of civilian's rights.

116. Upon information and belief, the "City" knew of the improper, unconstitutional and/or illegal police practices of Champion prior to July 5, 2021 and yet continued to employ, assign and/or promote Champion without any meaningful discipline and/or punishment or retraining and placed him in a position to do the acts stated herein and where other officers would follow his lead to the detriment of civilian's rights.

117. Upon information and belief, the "City" knew of the improper, unconstitutional and/or illegal police practices of Cristiano prior to July 5, 2021 and yet continued to employ, assign and/or promote Cristiano without any meaningful discipline and/or punishment or retraining and placed him in a position to do the acts stated herein and where other officers would follow his lead to the detriment of civilian's rights.

118. Upon information and belief, the "City" knew of the improper, unconstitutional and/or illegal police practices of Gonzalez prior to July 5, 2021 and yet continued to employ, assign and/or promote Gonzalez without any meaningful discipline and/or punishment or retraining and placed him in a position to do the acts stated herein and where other officers would follow his lead to the detriment of civilian's rights.

119. Upon information and belief, the "City" knew of the improper, unconstitutional and/or illegal police practices of Aloio prior to July 5, 2021 and yet continued to employ, assign and/or promote Aloio without any meaningful discipline and/or punishment or retraining and placed him in a position to do the acts stated herein and where other officers would follow his lead to the detriment of civilian's rights.

120. Upon information and belief, the "City" knew of the improper, unconstitutional and/or illegal police practices of Bedford prior to July 5, 2021 and yet continued to employ, assign and/or promote Bedford without any meaningful discipline and/or punishment or retraining and placed him in a position to do the acts stated herein and where other officers would follow his lead to the detriment of civilian's rights.

121. Upon information and belief, this practice of retention of "bad" officers was not unique to Matos, Champion, Cristiano, Gonzalez, Aloio and/or Bedford, rather it was a practice adopted by the defendant City and/or the NYPD, and/or was treated with deliberate indifference

by the City and/or NYPD.

122. In a New York Times article published November 15, 2020 titled A Watchdog Accused Officers of Serious Misconduct: Few were Punished, by Ashley Southall, Daniels Watkins and Blacki Miglozzi, it reported that of the 6,900 misconduct charges recommended over the highest level of discipline was recommend, the NYPD ignored 71% of the recommendations and routinely downgraded the charges. This included only two of the 28 recommended charges since the current police commissioner Dermot Shea has been in charge of the NYPD.

123. The Times article found after reviewing charges brought against 3,188 officers that the Police Department followed the Review Board's recommendations less than 20 percent of the time; that fewer than one in five officers received punishment ranging in severity from 1 lost day vacation to 12 months of dismissal probation; that just seven officers were fired (and only after being convicted of a crime in court); and that many officers had multiple findings against them, but continued to be promoted.

124. It is in this atmosphere, which was created, permitted or acted upon with deliberate indifference by the City, which allowed the constitutional violations of Baerga to occur and permitted the defendant officers to act with impunity.

125. That the unlawful and illegal conduct of the defendant officers deprived plaintiff of the following rights, privileges and immunities secured to him by the Constitution of the United States and of the State of New York:

- i. The right of plaintiff to be secure in his person and effects against unreasonable search and seizure under the Fourth and Fourteenth Amendments to the Constitution of the United States; and,
- ii. The right not to be discriminated against based upon the plaintiff's race, creed, sex, or sexual orientation.
- iii. The right to Due Process Law.
- iv. The right to equal protection under the law.
- v. The right not to be subjected to cruel and unusual punishment
- vi. The right to freedom of speech and expression

126. That by reason of the aforesaid violations, use of force, use of arbitrary, excessive

force, seizure of plaintiff's person, his false arrest and false imprisonment, assault and battery, excessive use of force, falsifying evidence, malicious prosecution, and conspiracy to commit the above, the defendants, "City", and "Matos, Champion, Cristiano, Gonzalez, Aloio and/or Bedford violated Baerga's rights and privileges as provided to him in the Constitution of the United States of America, and provided to him in the Constitution of the State of New York, and laws thereto, "the officers" and violated 42 U.S.C. §1983 and/or 1988.

127. That by reason of the aforesaid, plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain.

128. That by reason of the aforesaid, plaintiff has been damaged in a sum of exceeding the jurisdiction of the lower courts, and seeks compensatory damages, plus, punitive damages (against Matos, Champion, Cristiano, Gonzalez, Aloio and Bedford), costs, attorney's fees, expert fees, as set forth and provided by 42 U.S.C. Sections 1983 and 1988, and such other relief as to the court may seem just and proper on the sixth cause of action.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
FOR MALICIOUS PROSECUTION

129. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "128" with the same force and effect as if more fully and at length set forth herein.

130. That the defendants initiated a criminal case against the plaintiff in Criminal Court, New York County.

131. That there was no reasonable or probable cause to commence the prosecution against the plaintiff.

132. That in commencing the arrest and prosecution, the defendants acted with malice and disregard for the truth.

133. Plaintiff was at all times innocent of the crimes alleged.

134. That all criminal charges against the plaintiff were dismissed on February 1, 2022.

135. That by reason of the aforesaid malicious prosecution, Baerga was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

136. That by reason of the aforesaid, Baerga has been damaged in an amount exceeding the jurisdictional limits of the lower courts

AS AND FOR A FOURTEENTH CAUSE OF ACTION
FOR LIBEL, SLANDER AND/OR DEFAMATION

137. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked "1" through "136" with the same force and effect as if more fully and at length set forth herein.

138. That on or about July 5, 2021, the defendants made or provided false statements to the New York County District Attorney's Office for the purpose of prosecuting the plaintiff which was reduced to writing and formed part of the Criminal Court Complaint charging the plaintiff with crimes he did not commit.

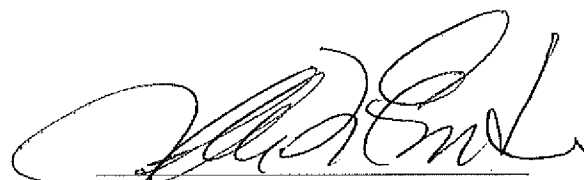
139. Upon information and belief the defendants provided information to news outlets for the purpose of publishing the defendants name, address and charges which were published in the New York Post and read by the plaintiff's community including his employer, causing him great shame and embarrassment.

140. That by reason of the aforesaid malicious prosecution, Baerga was subjected to great indignity, humiliation, pain, suffering and loss of freedom and the said plaintiff has been otherwise damaged.

141. That by reason of the aforesaid, Baerga has been damaged in an amount exceeding the jurisdictional limits of the lower courts

WHEREFORE, the plaintiff demands judgment against the defendants in a sum to be determined by the trier of fact, plus costs, attorney's fees, punitive damages (on the seventh through twelfth causes of action) and such other and further relief as to the Court seems just and proper on the First through the Fourteenth causes of action.

DATED: New York, New York
June 29, 2022

A handwritten signature in black ink, appearing to read "Jeffrey L. Emdin", written over a horizontal line.

Jeffrey L. Emdin, Esq.,
Law Office of Jeffrey L. Emdin
Attorneys for the Plaintiff
330 West 38th Street, Suite 302
New York, New York 10018
(212) 265-1350

ATTORNEY'S VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of the State of New York certifies as follows:

That I am the attorney of record for the Plaintiff in the within action; that I have read the foregoing Verified Complaint and know the contents thereof; that the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters, I believe them to be true.

The undersigned further states that the reason this Verified Complaint is made by me and not by the Plaintiff is that the Plaintiff does not reside within the county in which my office is located.

The grounds of my belief as to all matters stated upon my knowledge are my interviews with the Plaintiff and a reading of the documents in my case file.

The undersigned affirms that the foregoing statements are true, under the penalty of perjury.

Dated: New York, New York
June 29, 2022



Jeffrey L. Emdin

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

JASON BAERGA,

Plaintiffs,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER MAYKO MATOS, 6TH PCT., SHIELD #13660, INDIVIDUALLY, AND AS A POLICE OFFICER, POLICE OFFICER CHRISTOPHER CHAMPION, 6TH PCT., SHIELD #05415, INDIVIDUALLY, AND AS A POLICE OFFICER, SGT THOMAS LEWANDOWSKI, 6TH PCT. TAX # 950747, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER JUSTIN CRISTIANO, 6TH PCT., TAX # 9651891, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER ANGEL GONZALEZ, 6TH PCT., TAX# 965143, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER DENNIS ALOIO, 6TH PCT. TAX # 964875, INDIVIDUALLY AND AS A POLICE OFFICER, POLICE OFFICER LEROY BEDFORD, 6TH PCT, TAX # 92345MINDIVIDUALLY AND AS A POLICE OFFICER, SHIELD #27634, INDIVIDUALLY, AND AS A POLICE OFFICER, AND POLICE OFFICER JOHN/JANE "DOE" #1-#5, IDENTITIES UNKNOWN,

Defendants.

SUMMONS WITH VERIFIED COMPLAINT

LAW OFFICE OF JEFFREY L. EMDIN

Attorney for the Plaintiff

330 W 38th Street, Room 302

New York, New York 10018

(212) 265-1350

TO: City of New York
c/o Office of the
Corporation Counsel
100 Church Street, 4th floor
New York, New York 10007

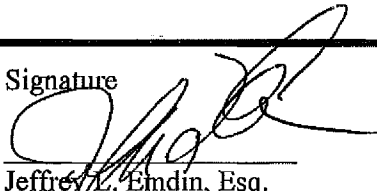
New York City Police Department
One Police Plaza
New York, N.Y. 10007

P.O. Mako Matos
P.O. Christopher Champion
Sgt Thomas Lewandowski
PO Justin Cristiano
P.O. Angel Gonzalez
P.O. Dennis Aloio
P.O. Leroy Bedford
c/o 6th pct.
233 W 10th St
New York, NY 10014

Pursuant to 22 NYCRR 130-1.0, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: June 29, 2022

Signature


Jeffrey L. Emdin, Esq.